

M/s G.M.K. Steels Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 31 May 2016 · Writ-C No. 74213 of 2005 · **Writ dismissed; additional-security demand and clause 4.20 challenge fail.**

HEADNOTE

A consumer's challenge to an additional-security demand and to clause 4.20 of the U.P. Electricity Supply Code, 2005 as inconsistent with section 47 of the Electricity Act, 2003 (pre-payment meter in lieu of security; interest on security already paid) failed. None appearing, the Division Bench perused the record, found no ground for any of the reliefs, dismissed the writ and vacated any interim order.

FACTUAL SUMMARY

M/s G.M.K. Steels challenged Pashchimanchal Vidyut Vitran Nigam's 22 November 2005 demand for additional security of Rs 34,55,200 and a 11 February 2005 Ministry of Power clarificatory letter. It sought a declaration that clause 4.20 of the U.P. Electricity Supply Code, 2005 was ultra vires the Electricity Act, 2003 for deferring pre-payment meters, plus mandamus for a section 47(5) pre-payment meter and refund of Rs 60,10,900 security with 12% interest under section 47(4). None appeared at the hearing.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security and pre-payment meter

HOLDING

Having perused the record in the absence of counsel, the Court found no ground to quash the 22.11.2005 additional-security demand of Rs 34,55,200, to declare clause 4.20 of the U.P. Electricity Supply Code, 2005 ultra vires section 47 of the Electricity Act, 2003, to mandamus a pre-payment meter under section 47(5), or to refund existing security with 12% interest under section 47(4). The writ was dismissed and any interim order vacated. ¶ 3-5

HOLDING-UNIT · EA2003::47

pre-payment meter and interest on security

HOLDING

Relief under section 47(4) and 47(5) of the Electricity Act, 2003—installation of a pre-payment meter, restraint from levying security under the repealed law, and refund or adjustment of Rs 60,10,900 security with 12% interest—was refused along with the rest of the writ. ¶ 2-4